



**PLANNING &
DEVELOPMENT**

2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6282
cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Morgan Dennis
Subject: PUDC-26-177 Hitching Post District – Assigned Zoning
Date: September 9, 2026

Background:

The item for consideration is an Assigned Zoning. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 9/14/2026
- Public Services Committee 9/21/2026
- Second reading 9/28/2026
- Public Services Committee 10/5/2026
- Third and final reading 10/12/2026

Planning Commission Recommendation:

The Planning Commission heard this item at their September 8, 2026, meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Public Comment

As of the creation of this memo (September 9, 2026), Staff has received no inquiries or comments from the public on this project. The project page on the website has received 193 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ESTABLISHING THE ZONING CLASSIFICATION OF AG AGRICULTURAL AND LI LIGHT INDUSTRIAL FOR LAND ANNEXED TO THE CITY OF CHEYENNE LOCATED SOUTH OF INTERSTATE 80, SOUTHEAST OF OTTO ROAD, AND WEST OF INTERSTATE 25."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. Swan Ranch LLC and Clear Creek Land Company LLC, as owners of the real property described below, have petitioned the governing body of the City of Cheyenne to annex the following real property into the City of Cheyenne:

PARCEL 1

A portion of Sections 10, 11 and 15 Township 13 North, Range 67 West of the Sixth Principal Meridian, being more particularly described as follows:

Beginning at the northwest corner of Lot 1, Block 1, Clear Creek Subdivision, 1st Filing and a point on the westerly right of way of Interstate 80 being monumented by a found aluminum cap; thence along said westerly right of way the following courses and distances: S75°26'12"E a distance of 176.02 feet to a found right of way marker; thence S49°36'27"E a distance of 103.26 feet to a found aluminum cap on the westerly boundary of a parcel shown on the annexation map for City Ordinance #3840 recorded at book 2091 page 974 of the Laramie County records; thence along said westerly boundary N01°31'59"W a distance of 1260.99 feet to a found aluminum cap on the westerly boundary of a parcel shown on the annexation map for City Ordinance #3955 recorded at book 2289 page 1496 of the Laramie County records; thence along said westerly boundary N01°31'59"W a distance of 298.43 feet to a set aluminum cap; thence N58°25'18"E a distance of 480.15 feet to a found iron pipe on the north line of said Section 11; thence along said north line N89°41'04"W a distance of 638.35 feet to a set aluminum cap and point of intersection with the southerly right of way of Otto Road; thence along said southerly right of way S63°16'55"W a distance of 836.23 feet to a set aluminum cap; thence N26°43'05"W a distance of 250.00 feet to a found right of way marker and a point on the north right of way of Otto Road; thence along said north right of way the following courses and distances: S63°16'55"W a distance of 6246.80 feet to a found right of way marker; thence S63°28'05"W a distance of 2918.72 feet to a found aluminum cap; thence S07°05'46"E a distance of 1253.29 feet to a found aluminum cap on the west line of said Section 15; thence along said west line S00°34'22"W a distance of 61.57 feet to a point on the northerly boundary of said Lot 1, Block 1 of Clear Creek Subdivision; thence along said northerly boundary the following courses and distances: N74°21'24"E a distance of 1091.72 feet to a

found aluminum cap; thence N74°56'39"E a distance of 800.73 feet to a found aluminum cap; thence N84°53'46"E a distance of 445.57 feet to a found aluminum cap; thence N84°52'55"E a distance of 799.46 feet to a found aluminum cap; thence S86°45'41"E a distance of 1942.86 feet to a found aluminum cap; thence N88°04'10"E a distance of 302.17 feet to a found aluminum cap; thence N87°37'51"E a distance of 1285.00 feet to a found aluminum cap; thence N87°38'02"E a distance of 1124.45 feet to a found aluminum cap; thence N37°33'37"E a distance of 1369.83 feet to a found aluminum cap; thence N36°20'59"E a distance of 623.31 feet to a found aluminum cap; thence N00°00'09"E a distance of 1666.42 feet to the point of beginning.

Said parcel of land contains 623.19 acres, more or less, and is subject to easements of record.

AND

PARCEL 2

A portion of Sections 11 and 14 Township 13 North, Range 67 west of the Sixth Principal Meridian, being more particularly described as follows:

Commencing at the northeast corner of said Section 14; thence N89°00'04"W a distance of 1804.32 feet to a found aluminum cap on the easterly boundary of Lot 1, Block 1 of Clear Creek Subdivision, 1st Filing and the point of beginning; thence S53°29'59"E a distance of 726.77 feet to a found aluminum cap; thence S14°08'25"W a distance of 341.22 feet to a found iron rod on the northerly boundary of Lot 1, Block 4 of Overland Trails Business Park Fourth Filing; thence along said northerly boundary N84°54'05"W a distance of 690.60 feet to a found aluminum cap on the westerly boundary of said Lot 1; thence along said westerly boundary S05°03'51"W a distance of 315.87 feet to a found iron rod; thence continuing along said westerly boundary S40°51'12"E a distance of 180.55 feet to a found aluminum cap on the westerly right of way of Clear Creek Parkway right of way and the beginning of a non-tangent curve to the left; said curve having a radius of 550.00 feet, a chord bearing of S30°17'31"W, a chord distance of 288.83 feet and a central angle of 30°26'44", thence along said westerly right of way and the arc of said curve a distance of 292.26 feet to a found aluminum cap; thence continuing along said westerly right of way the following courses and distances: S15°03'05"W a distance of 520.32 feet to a found aluminum cap and the beginning of a curve to the left; said curve having a radius of 1492.82 feet, a chord bearing of S05°04'31"W, a chord distance of 518.45 feet and a central angle of 20°00'00", thence along the arc of said curve a distance of 521.09 feet to a found aluminum cap; thence S02°19'01"E a distance of 21.74 feet to a found aluminum cap and a point on the northerly boundary of Lot 1, Block 1 of Swan Ranch Rail Park 20th Filing; thence along said north boundary S73°17'44"W a distance of 432.70 feet to a set aluminum cap on the north-south quarter line of said Section 14; thence along said north-south quarter line N00°15'18"E a distance of 1333.44 feet to a set aluminum cap on the southerly boundary of said Lot 1, Block 1 of Clear Creek Subdivision; thence along said southerly boundary S88°00'30"E a distance of 76.82

feet to a found aluminum cap on said easterly boundary of Clear Creek Subdivision 1st Filing; thence along said easterly boundary N31°22'56"E a distance of 1448.54 feet to the point of beginning.

Said parcel of land contains 29.48 acres, more or less, and is subject to easements of record.

Section 2. That Section 2.2.8 of the Cheyenne Unified Development Code (UDC) provides standards and procedures for zoning districts established on land or property currently without a City zone assignment including land being annexed to the city.

Section 3. That on September 8, 2026, the City of Cheyenne Planning Commission conducted public hearings, reviewed the proposed zoning assignment that is the subject of this ordinance, and recommended approval of said zoning assignment.

Section 4. That the Governing Body of the City of Cheyenne finds that the zoning assignment that is the subject of this ordinance meets the criteria specified in Section 2.2.8.d of the UDC.

Section 5. That in accordance with Section 2.2.8, Assigned Zoning, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the zoning classifications of the real property as described in Section 1 is hereby established as AG Agricultural for Parcel 1 and LI Light Industrial for Parcel 2.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 5 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon approval and publication of the affiliated annexation.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

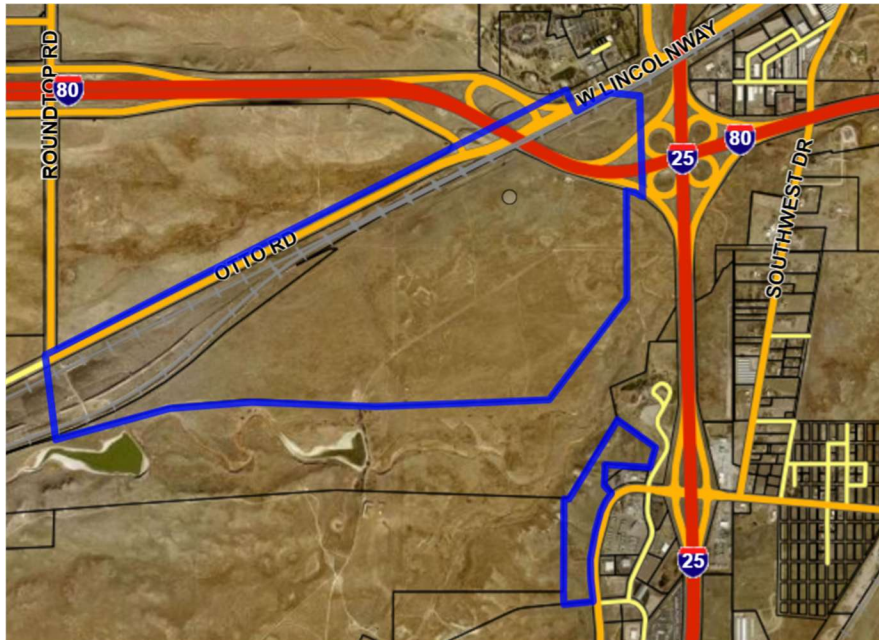
CITY OF
CHEYENNE
— PLANNING &
DEVELOPMENT —

CITY OF CHEYENNE PLANNING COMMISSION

September 8, 2026

STAFF REPORT

FILE:	PUDC-26-177: Hitching Post District – Assigned Zoning
LOCATION:	South of Interstate 80, southeast of Otto Road, west of Interstate 25
REQUEST:	Assigning City zones to properties that the owner is annexing.
ANNEXATION APPLICANT:	Doug Samuelson, Swan Ranch LLC & Clear Creek Land Co LLC
OWNER:	Doug Samuelson, Swan Ranch LLC & Clear Creek Land Co LLC
CURRENT ZONING:	County Overland PUD
PROPOSED Zoning:	AG – Agriculture
FUTURE LAND USE:	Agricultural/Rural, Rural Residential, Mixed-Used Employment
PURPOSE:	To establish a City zoning district concurrent with annexation.
PREPARED BY:	Morgan Dennis, Planner I



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the assigned zoning for the Hitching Post District to AG – Agricultural for the northern annexed area and LI – Light Industrial for the southern annexed area as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.8 Assigned Zoning

BACKGROUND:

This is a landowner petition to annex the property into the City.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

- 1. The proposed zoning assignment is the most analogous City zone to the current zone when taking into consideration allowed uses, current uses, or surrounding City zones. Zoning for standard county zones shall be assigned based on the policy document, while zones not listed on the policy document and terminated City zones shall be assigned a City zone on a case-by-case basis shall be assigned a City zone based on:**
 - a. Permitted uses,**
 - b. Uses that could reasonably be anticipated for conditional use approval under the current zoning,**
 - c. Current uses, or**
 - d. Surrounding City zoning,****as deemed most suitable for the property being assigned a zone in terms of allowing the landowner to continue the current use of the land while respecting the current and anticipated uses of surrounding property.**

This annexation contains two different parcels. The larger parcel is currently zoned Overland PUD in the County. The smaller parcel is currently zoned County Light Industrial. The Overland PUD was zoned for residential, commercial, business, and industrial development in this area. These zones include land use allowances for Industrial, Commercial, Residential, and Open Space. County Light Industrial allows for lighter industrial uses. The City zoned parcels that are around these two parcels are AG Agriculture, Overland PUD, P Public, and County LI Light Industrial. The Future Land Use Map designates most of this land as Agricultural/Rural, Open Space and Parks. A small portion of the southern parcel is designated Mixed-Used Employment.

The Overland PUD land use designations are outlined in its Ordinance. The Open Space is for area with slopes over 15% and natural drainage systems with the intent that developers dedicate the public the primary open space. Business is the location for offices and service-oriented uses. Major uses will be non-retail business facilities, with some retail being secondary. Industrial is for

manufacturing and warehousing activities, with intended for businesses that need truck access, along rail, or near interstate highway or interchange access.

The parcels are both vacant with limited agriculture use, mainly grazing.

Staff considered various options for the assigned zoning, including:

- BP Business Park
- LI Light Industrial
- HI Heavy Industrial
- CB Community Business
- AG Agriculture

After analyzing the potential options, Staff choose the AG Agriculture zone as the assigned zone for the northern parcel and LI Light Industrial for the southern parcel. The rationale behind each zone is outlined below.

The BP Business Park zone district Intent and Applicability is primarily for small and large industrial development with retail and office uses that support the industrial developments, Business Parks are typically located near major transportation routes, and the district has to contain 320 acres. The associated annexation is roughly 650 acres. While it fits for the Industrial section of the PUD and applicable to the Business due to the supporting nature of commercial development in this zone district. It conflicts with Open Space designation of PUD. Thus, this does not make BP wholly appropriate for the assigned zone with the annexation. This zone district also does not cover the current use of the either parcel. The BP zone is also one of the City's more intense zone districts and there is little on or around the property that is currently developed with this high intensity of uses.

The LI Light Industrial zone district Intent and Applicability is for environmentally controlled manufacturing, or intensive employment uses that may have accessory commercial, service, office uses and cannot readily fit into other general business or mixed-use area due to nature or intensity of operations. Light Industrial zones are located in areas that provide substantial buffers to surrounding sites to minimize the potential for incompatible and negative impacts of uses in the district. This is appropriate for all of the Industrial based areas, but this does not cover the Business or Open Space areas. This is not appropriate as the assigned zoning for the whole annexed property but rather chunks of it, with other being assigned other zones. For the smaller parcel, Light Industrial would be the most appropriate considering the County zoning was Light Industrial. This zone district also does not cover the current use of the largest parcel.

The HI Heavy Industrial zone district Intent and Applicability is for very high intensity industrial uses that should be isolated and buffered to protect the community to ensure unimpeded operation of the use. They cannot fit in general business or mixed-use areas due to the nature or intensity of operations. Larger land areas that are remote from other differing or incompatible to minimize the potential for incompatible and negative impacts of the uses. This is appropriate for all of the Industrial based areas, but this does not cover the Business or Open Space areas. This is not appropriate as the assigned zoning for the whole annexed property but rather chunks of it, with other being assigned other zones. This zone district also does not cover the current use of either parcel.

The CB Community Business zone district Intent and Applicability is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. It is applicable in area where moderate- or large-scale business uses are appropriate, specifically larger Mixed-use Commercial

Activity Center. This zone would cover the Business portion of the designations of the PUD but not the Industrial or Open Space. Within the Community Business zone, select Industrial uses are Conditional Use in the CB zone district. This zone district also does not cover the current use of either parcel.

The AG Agricultural zone district Intent and Applicability is for agriculture uses or other use of land in a natural state. Agriculture-related residential uses and agriculture-related businesses are included provided they support the primary use of the land for farming, ranching, or agriculture uses. All uses require little to no public infrastructure in the short term. It is applicable in areas with significant natural lands or open spaces. The Agricultural zone district is also applicable as interim or holding zone for areas that may be further developed, re-subdivided and reclassified in the long term. This would cover the Open Space designation within the PUD but does not cover the Business or Industrial. Agriculture would be appropriate based on existing use of vacant/grazing lands as and due to the zone being a short-term holding zone for future development. It would also be appropriate due to the zoning of the touching City parcel is Agricultural.

For the larger parcel, the most appropriate assigned zone is AG Agricultural based off of the current use and the variety of uses of the land under the Overland PUD creates ambiguity on a direct City zone. The smaller parcel is currently zoned County LI Light Industrial and City zone that is most analogous is LI Light Industrial.

This assigned zoning **complies** with review criterion 1.

STAFF REVIEW:

Through the review process, there were no comments.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.8.(d).

ALTERNATIVES:

1. Recommend approval of the Assigned Zoning as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the Assigned Zoning subject to conditions or modifications.
3. Recommend denial of the Assigned Zoning based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the Assigned Zoning until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or recommends conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for their recommendation.

STAFF RECOMMENDATION:

Staff recommends approval of the assigned zoning for Hitching Post District to AG – Agricultural for the northern parcel and LI – Light Industrial for the southern parcel as shown in the attached annexation map, noting that the project meets the review criteria for approval.

ATTACHMENTS:

1. Zoning Map

